

26NNCV02841 26NNCV02841

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#11 - ALEJANDRO RIOS vs FORD MOTOR COMPANY

DEMURRER

Plaintiff Alejandro Rios filed his complaint on April 15, 2026, and it pleads four causes of action: violation of the Song-Beverly Consumer Warranty Act, breach of express warranty, breach of implied warranty of merchantability, and violation of Business and Professions Code section 17200 et seq.

Defendant Ford Motor Company's demurrer asserts that the action is barred by prior settlements, dismissals with prejudice, and a written release arising from two prior lawsuits between these parties concerning the same 2022 Ford Escape, VIN 1FMCU0G63NUB51969.

Request for Judicial

Notice

Ford requests judicial notice of six documents from two prior Los Angeles Superior Court actions involving these parties, including the complaint, a Code of Civil Procedure section 998 offer, and dismissal in case no. 24NNCV06861, and the complaint, settlement and release agreement, and dismissal request in case no. 25NNCV07708.

Judicial notice may be taken of records of any court in this state. (Evid. Code, § 452, subd.

(d)(1).) Because the above documents are

all court records in this state, the Court may take judicial notice of them. (Ibid.) However, "while courts are free to take judicial notice of the existence of each document in a court file, including

the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

The request is GRANTED as to the existence, filing, and operative legal effect of the prior court records and the February 10, 2026 settlement and release agreement. The request is DENIED to the extent it seeks judicial notice of the truth of factual allegations contained in prior pleadings.

Tentative Ruling

The Demurrer to the operative Complaint is sustained without leave to amend.

Legal Authority and Analysis

A general demurrer may be taken to a complaint where “[t]he pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10(e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.)

The complaint alleges that Plaintiff purchased the subject 2022 Ford Escape on or about August 15, 2023, paid \$2,955.00 for a Transmission Control Assembly repair completed on April 17, 2025, and later received an April 7, 2026 Ford email acknowledging a reimbursement request and requesting a receipt showing the VIN, amount, repair description, date of repair, part numbers used, and mileage at the time of repair. (Compl., ¶¶ 16, 21, 25.) The complaint further alleges that the repair invoice contained those categories of information and that Ford failed to

reimburse Plaintiff. (Compl., ¶ 1.)

The first prior action, LASC Case No. 24NNCV06861, was filed on December 31, 2024 (RJN, Exh. A), resolved by a Code of Civil Procedure section 998 offer dated April 7, 2025 (RJN, Exh. B), and dismissed with prejudice on August 21, 2025 (RJN, Exh. C).

The second prior action, LASC Case No. 25NNCV07708, was filed on October 30, 2025 (RJN, Exh. D), and was resolved by a written settlement and release dated February 10, 2026 (RJN, Exh. E). That release states that Plaintiff released Ford from “all claims relating to the purchase, lease, condition, use, or repair of the Subject Vehicle that arose during Plaintiff’s purchase or possession of the Subject Vehicle,” and the release specifically included claims under Civil Code sections 1793.2, 1793.22, and 1794. (RJN, Exh. E, ¶ 3.) Plaintiff filed a request for dismissal with prejudice in case no. 25NNCV07708 on April 28, 2026. (RJN, Exh. F.)

The Court notes Ford’s motion is captioned as a demurrer to a “First Amended Complaint” and include arguments directed to causes of action not pleaded in the operative complaint, while the operative complaint on file pleads only the four causes identified above. The Court therefore construes the motion as directed only to the operative complaint on file.

The release bars the claims as pleaded.

Each cause of action in the operative complaint seeks recovery based on the same alleged loss: Plaintiff’s payment for the April 17, 2025 repair and Ford’s failure to reimburse that repair cost and related damages or equitable relief. The repair indisputably occurred before the February 10, 2026 settlement and while plaintiff owned and possessed the vehicle.

The release language is broad and unambiguous. It covers all claims relating to the purchase, lease, condition, use, or repair of the subject vehicle arising during plaintiff’s purchase or possession, and it expressly encompasses statutory claims under Civil Code sections 1793.2, 1793.22, and 1794.

As pleaded, the present Song-Beverly, express warranty, implied warranty, and UCL claims all arise from a repair-related expense incurred during plaintiff’s ownership of the vehicle and therefore fall within the scope of that release.

The complaint alleges that Ford later acknowledged receipt of a reimbursement request and requested invoice details, but it does not allege that Ford entered a new agreement, expressly promised reimbursement notwithstanding the release, or expressly modified the February 10, 2026 settlement. Those allegations do not plead a new post-release contractual obligation independent of the released repair claim.

The Court finds the release is dispositive.

Leave to amend is denied.

In opposition and in the bench brief, Plaintiff argues that he can amend to add the exact reimbursement emails, approval or refund language, a payment timeline, reliance, waiver, equitable estoppel, promissory estoppel, an independent reimbursement agreement, UCL allegations directed to reimbursement administration, and declaratory relief regarding the scope of the release. Plaintiff's argument does not identify facts establishing a concrete post-release promise or contractual term that would alter the effect of the written release already before the Court. Given the breadth of the release and the pre-release timing of the repair expense at issue, the Court finds no reasonable possibility that amendment could cure the defect. Leave to amend is therefore denied.

Moving Party is to give notice.